

VERSION NO. 2	MANUAL TITLE FINANCE AND ADMINISTRATION MANUAL	DOCUMENT NO. FAM 4.4
	DOCUMENT NAME CODE OF CONDUCT AND ETHICAL STANDARDS	REVISION NO. 0
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1. OBJECTIVES

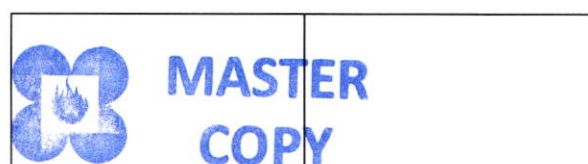
- 1.1 To ensure and enforce compliance at all times with the standards of job performance and personal behavior.
- 1.2 To protect the rights and interests of employees and the agency.
- 1.3 To develop individual responsibility and respect towards his work, agency, property and colleagues.

2. SCOPE

This procedure applies to all employees of the company regardless of rank, position and employment status.

3. POLICIES

- 3.1. It is the policy of the Agency to promote a high standard of ethics in public service. PSHS employees shall at all times be accountable to the people and shall discharge their duties with utmost responsibility, integrity, competence and loyalty, act with patriotism and justice, lead modest lives, and uphold public interest over personal interest, pursuant to Republic Act No. 6713 otherwise known as the "Code of Conduct and Ethical Standards for Public Officials and Employees" and related government issuances, administrative order, memoranda, and circulars.
- 3.2. PSHS shall conduct values development programs for its employees in order to strengthen their commitment to public service and help promote the primacy of public interest over personal interest in the performance of their duties. Such programs and other parallel efforts on value development shall include, among other things, the following subject:
 - 3.2.1. Ethical and moral values;
 - 3.2.2. Rights, duties and responsibilities of public servants;
 - 3.2.3. Nationalism and patriotism;
 - 3.2.4. Justice and human rights;
 - 3.2.5. Democracy in a free and just society;
 - 3.2.6. Philippine history, culture and tradition; and



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3.2.7. Socio-economic conditions prevailing in the country, especially in the depressed areas, and the need for a Code of Conduct and Ethical Standards.

Continuing refresher courses and seminars and/or workshops to promote a high standard of ethics in public service shall be conducted.

3.3. Professional, scientific, technical trainings and education programs shall enhance to the highest degree of professionalism, excellence, intelligence and skills in the performance and discharge of duties and responsibilities of officials and employees. These programs shall be conducted and may include subjects that are enumerated in the preceding section.

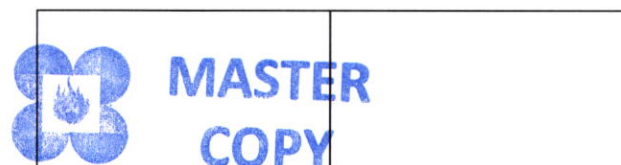
3.4. It is the responsibility of the agency to ensure that officials and employees attend the values development program and participate in parallel values development efforts.

3.5. PSHS shall conduct continuing studies and analyses of their work systems and procedures to improve delivery of public services. Towards this end, such studies and analyses shall:

- 3.5.1. identify systems and procedures that lead or contribute to negative bureaucratic behavior;
- 3.5.2. simplify rules and procedures to avoid red tape; and
- 3.5.3. devise or adopt systems and procedures that promote employee morale and satisfaction.

3.6. PSHS shall develop a service guide or its functional equivalent which shall be regularly updated and made available to the transacting public. A workflow chart showing procedures or flow of documents shall likewise be posted in conspicuous places in the agency for the information and guidance of all concerned. Upon request, the Department of Budget and Management shall assist the agency in the evaluation and adoption of work systems and procedures that will institutionalize a management climate conducive to public accountability.

3.7. PSHS shall consult the public they serve for the purpose of gathering feedback and suggestions on the efficiency, effectiveness and economy of services. They shall establish mechanism to ensure the conduct of public consultation and hearings.



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3.8. PSHS shall continuously conduct research and experimentation on measures and adopt innovative programs which will provide motivation to employees in raising the level of observance of public service ethical standards.

3.9. PSHS shall, in consultation with the Office of the Ombudsman, appoint or designate a Resident Ombudsman who shall act immediately on all request for public assistance referred to him/her by the Ombudsman and his Deputies. He/She shall be held accountable for all the disposition of all requests for assistance.

3.10. Transparency of Transaction and Access to Information

3.10.1. Subject to reasonable conditions prescribed by law, the agency adopts and implements a policy of full public disclosure of all its transactions involving public interest.

3.10.2. It is the responsibility of Executive Director/ Campus Director to establish measures and standards that will ensure transparency of and openness in public transactions in their respective offices, such as in biddings, purchases, other financial transactions including contracts, status of projects, and all other matters involving public interest.

3.10.3. Executive Director/ Campus Director shall establish information system that will inform the public of the following:

- 3.10.3.1. policies, rules, and procedures;
- 3.10.3.2. work programs, projects, and performance targets;
- 3.10.3.3. performance reports; and
- 3.10.3.4. all other documents as may hereafter be classified as public information.

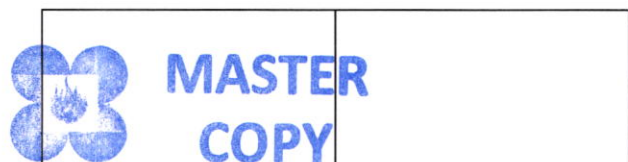
Such public information shall be utilized solely for the purpose of informing the public of such policies, programs and accomplishments, and not to build the public image of any employee or to advance his own personal interest.

3.10.4. PSHS shall provide official information, records or documents to any requesting public subject to applicable provisions of Freedom of Information (E.O. No. 02). The following information are also exempted from public disclosure:



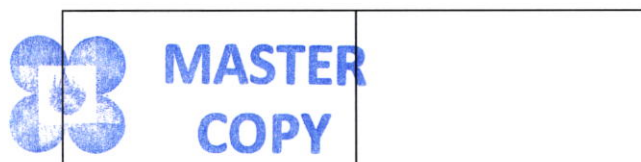
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- 3.10.4.1. such information, record or document must be kept secret in the interest of national defense or security or the conduct of foreign affairs;
- 3.10.4.2. such disclosure would put the life and safety of an individual in imminent danger;
- 3.10.4.3. the information, record or document sought falls within the concepts of established privilege or recognized exceptions as may be provided by law or settled policy or jurisprudence;
- 3.10.4.4. such information, record or document comprises drafts of decisions, orders, rulings, policy decisions, memoranda, etc.;
- 3.10.4.5. it would disclose information of a personal nature where disclosure would constitute a clearly unwarranted invasion of personal privacy;
- 3.10.4.6. it would disclose investigatory records compiled for law enforcement purposes or information which if written would be contained in such records, but only to the extent that the production of such records or information would (i) interfere with enforcement proceedings, (ii) deprive a person of a right to a fair trial or an impartial adjudication, (iii) disclose the identity of a confidential source and in the case of a record compiled by a criminal law enforcement authority in the course of a criminal investigation, or by an agency conducting a lawful national security intelligence investigation, confidential information furnished only by the confidential source, or (iv) unjustifiably disclose investigative techniques and procedures; in the case of a department, office or agency which agency regulates currencies, securities, commodities, or financial institutions, be likely to lead to significant financial speculation in currencies, securities, or commodities, or significantly endanger the stability of any financial institution; or (ii) in the case of any department, office or agency be likely or significantly to frustrate implementation of a proposed official action, except that subparagraph (f) (ii) shall not apply in any instance where the department, office or agency has already disclosed to the public the content or nature of its proposed action, or where the department, office or agency is required by law to make such disclosure on its own initiative prior to taking final official action on such proposal.



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- 3.10.4.7. Information and records listed under the “*List of Exceptions*” in the PSHS System FOI Manual, such as but not limited to: Student Records, Board Resolutions, Execom Resolutions, Mancom Resolutions, Information Necessary for the Protection of Minors and Individuals, Information Deemed Confidential by Reason of Official Capacity, and similar others.
- 3.10.4.8. All other information and records declared classified or confidential by appropriate government agencies, or competent authorities, or by the BOT as confidential, by virtue of law, resolution, administrative order, circular, or memoranda.
- 3.10.5. PSHS shall establish information systems and networks that will effect the widest possible dissemination of information regarding the provisions of the Code, and the policies and programs relative thereto.
- 3.10.6. PSHS shall observe Revised Dress Code Prescribed for all government employees in the workplace in accordance with CSC rules and related DOST Administrative Orders as follows:
- 3.10.6.1. Appropriate Attire – if no prescribed office uniform for the day, employees shall be dressed in appropriate business attire. The wearing of “maong” pants, although generally prohibited, may be considered as appropriate attire when paired with a collared polo/shirt (for male employees), or any appropriate blouse or shirt (for female employees).
- 3.10.6.2. Prohibited Attire – The following attire shall be prohibited for all government employees when performing official functions inside the workplace:
- 3.10.6.2.1. Gauzy, transparent or net-like shirt or blouse;
- 3.10.6.2.2. Sando, strapless or spaghetti-strap blouse (unless worn as an undershirt), tank-tops, blouse with over-plunging necklines;
- 3.10.6.2.3. Micro-mini skirt, walking shorts, cycling shorts, leggings, tights, jogging pants;
- 3.10.6.2.4. Rubber sandals, rubber slippers, “bakya”



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3.10.6.3. Other prohibitions – The following shall also be prohibited during office hours and within office premises:

3.10.6.3.1. Ostentatious display of jewelry, except for special occasions and during official celebrations;

3.10.6.3.2. Wearing of heavy or theatrical make-up.

3.10.6.4. Exemptions that may be allowed – in the implementation of this Dress Code, certain implementation may be allowed, on the following grounds:

3.10.6.4.1. When nature of work of the employee demands that he/she wears clothing other than those prescribed above;

3.10.6.4.2. When religious affiliations or creed or any legitimate practice by the employee in relation thereto, requires him/her to wear a particular clothing;

3.10.6.4.3. Physical disabilities, and other legitimate health reasons;

3.10.6.4.4. Pregnant female employees are allowed to wear maternity dress during the period of their pregnancy;

3.10.6.4.5. Employees who lost a loved one can wear mourning clothes during the period of mourning;

3.10.6.4.6. Other circumstances analogous to the foregoing.

3.10.7. Duties of Public Officials and Employees (Rule IV, IRR of the Code of Conduct and Ethical Standards for Public officials and Employees, RA 6713)

3.11.7.1 As a general rule, when a request or petition, whether written or verbal, can be disposed of promptly and expeditiously, the official or employee in charge to whom the same is presented shall do so immediately, without discrimination, and in no case beyond fifteen (15) days from receipt of the request or petition.



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3.10.8. Public Disclosure

3.10.8.1. Every employee, except those who serve in an official honorary capacity, without service credit or pay, temporary laborers and casual or temporary and contractual workers, shall file under oath their statements of assets, liabilities and net worth and a disclosure of business interest and financial connections including those of their spouses and unmarried children under eighteen (18) years of age living in their households, in the prescribed form.

3.10.8.2. Every employee shall identify and disclose under oath to the best of his knowledge and information, his relatives in the government , up to the fourth civil degree of relationship, either of consanguinity or affinity, including bilas, inso, and balae, in the prescribed form, which shall be filed; (a) within thirty (30) days after assumption of office, the information contained therein must be reckoned as of his first day of office;(b) on or before April 30 of every year thereafter, the information contained therein must be reckoned as of the end of the preceding year; or (c) within thirty (30) days after separation from the service, the information contained therein must be reckoned as of his last day of office.

3.10.9. Conflict of Interest and Divestment

3.10.9.1. An official or employee shall avoid conflict of interest at all times. Conflict of Interest occurs when the official or employee is:

- 3.10.9.1.1. a substantial stockholder; or
- 3.10.9.1.2. a member of the Board of Directors; or
- 3.10.9.1.3. an officer of the corporation; or
- 3.10.9.1.4. an owner or has substantial interest in a business; or a partner in a partnership; and the interest of such corporation or business, or his rights or duties therein, are opposed to or affected by the faithful performance of official duty



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1.1.1.1. A substantial stockholder is any person who owns, directly or indirectly, shares of stock sufficient to elect a director of a corporation. This term shall also apply to the parties to a voting trust.

1.1.1.2. A voting trust means an agreement in writing between one or more stockholders of a stock corporation for the purpose of conferring upon a trustee or trustees the right to vote and the other rights pertaining the shares for certain periods and subject to such other conditions provided for in the Corporation Law.

1.1.1.3. When a conflict of interest arises, the official or employee involved shall resign from his position in any private business enterprise within thirty (30) days from his assumption of office and/or divest himself of his shareholdings interest within sixty (60) days from such assumption. For those who are already in the service, and conflict of interest arises, the officer or employee must resign from his position in the private business enterprise and/or divest himself of his shareholdings or interest within the periods herein-above provided, reckoned from the date when the conflict of interest had arisen. The same rule shall apply where the public official or employee is a partner in a partnership.

2. PROCEDURES

None

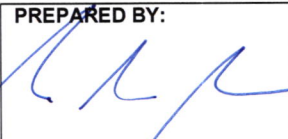
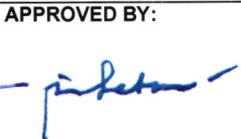
3. LIST OF FORMS AND REPORTS

3.1. Forms

None

3.2. Reports

None

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